

M/s Baba Cold Storage and Ice Factory v. DVVNL

High Court of Judicature at Allahabad · Division Bench · 30 August 2022 · Writ-C No. 26255 of 2010 · **Writ dismissed as infructuous by efflux of time.**

HEADNOTE

A consumer's writ invoking Electricity Supply Code para 4.16(c) against a direction to install an 11 kV oil circuit breaker—after an interim permission to install at its own cost, with a right to deduct that cost from bills if it succeeded—was dismissed as infructuous by efflux of time, without deciding who bore the installation liability.

FACTUAL SUMMARY

M/s Baba Cold Storage and Ice Factory, a DVVNL consumer, was directed to install an 11 kV oil circuit breaker at its premises. It had deposited the installation amount and pleaded that para 4.16(c) of the Electricity Supply Code put that liability on the licensee. It paid over Rs 1 lakh a month in electricity charges. On 18 May 2010 the High Court let it install the OCB at its own cost, subject to the writ, with a right to deduct the cost from bills if it succeeded. In 2022 counsel said the petition had become infructuous by efflux of time.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.16

OCB installation liability

HOLDING

The writ petition invoking para 4.16(c) of the Electricity Supply Code, which the consumer had pleaded as placing the liability to install an 11 kV oil circuit breaker on the distribution licensee, was dismissed as having become infructuous by efflux of time, without any adjudication of that clause. ¶ 2

PRINCIPLE TAGS

writ-dismissed-as-infructuous-with-liberty-to-move-afresh

A consumer's writ invoking Electricity Supply Code para 4.16(c) against a direction to install an 11 kV oil circuit breaker—after an interim permission to install at its own cost, with a right to deduct that cost from bills if it succeeded—was dismissed as infructuous by efflux of time ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER PARA 4.16(C) OF THE ELECTRICITY SUPPLY CODE PLACES THE LIABILITY TO INSTALL AN 11 KV OIL CIRCUIT BREAKER ON THE LICENSEE RATHER THAN THE CONSUMER

Raised on 18 May 2010; left open when the petition was dismissed as infructuous on 30 August 2022. ¶ 1